

6.

CASE #	CASE NAME	HEARING NAME
CVPS2505340	LEE VS OMNI RANCHO LAS PALMAS, LLC	DEMURRER ON 2ND AMENDED COMPLAINT OF CASSANDRA J LEE

Tentative Ruling:

Motion to Strike MOOT.

In light of the court sustaining the demurrer as to the 5th Cause of Action Fraudulent Inducement, the motion to strike is moot.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2601127	SZYMCAK VS TENNIS VENTURES, LLC	DEMURRER ON COMPLAINT OF LEANNE SZYMCAK

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P., § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly alleged, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.)

A pleading may also be challenged as uncertain where it is “ambiguous and unintelligible.” (C.C.P., § 430.10(f).) Uncertainty demurrers are disfavored and strictly construed, and they lie only where the pleading is so incomprehensible that the defendant cannot determine what issues must be admitted or denied. (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) “Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet.” (*People v. Lim* (1941) 18 Cal.2d 872, 882.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

1st Cause of Action Negligence/Negligence per se:

The elements of a negligence cause of action are: duty, breach, proximate or legal cause of injury to Plaintiff resulting from the breach, and damage to plaintiff. (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 673.) “Negligence per se” is not an independent tort, but rather an evidentiary doctrine codified at Evidence Code section 669. Under subdivision (a) of this section, the doctrine creates a presumption of negligence if four elements are established: (1) the defendant violated a statute, ordinance, or regulation of a public entity; (2) the violation proximately caused death or injury to person or property; (3) the death or injury resulted from an occurrence the nature of which the statute, ordinance, or regulation was designed to prevent; and (4) the person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted. These latter two

elements are determined by the court as a matter of law.” (*Quiroz v. Seventh Ave. Ctr.* (2006) 140 Cal.App.4th 1256, 1285.)

Plaintiff alleges violation of Vehicle Code section 22350, that she is among the class of persons the statute was designed to protect, and that the statute was enacted to prevent the type of accident alleged. These are sufficient ultimate facts at the pleading stage.

A negligence claim against an entity defendant may proceed on respondeat superior, on direct negligence based on ownership or control of the vehicle, on negligent entrustment, or any combination of those theories. The Complaint pleads each. It alleges Jane Doe was Moving Defendants’ agent or employee, acting within the scope of that relationship, and operating the cart with their express or implied authority and permission. That ultimate fact must be accepted as true at this stage. (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 214.) The Complaint further alleges Defendants owned, leased, maintained, managed, possessed, or otherwise controlled the cart. It also alleges Defendants knew or should have known Jane Doe was unfit, yet allowed her to operate the cart, and that her unfitness was a substantial factor in causing Plaintiff’s injuries. California permits alternative pleading where the precise factual relationship is within Defendants exclusive knowledge, and less particularity is required as to matters more readily known to Defendants. (*Smith v. Beauchamp* (1945) 71 Cal.App.2d 250.)

Moving Defendants’ contention that the Complaint must identify the specific employer, the exact employment arrangement, and the precise ownership chain seeks evidentiary detail rather than ultimate facts. Their argument that the entities owed no duty because they were not the driver overlooks the express vicarious-liability theory; an entity defendant may be liable through respondeat superior even though it did not personally operate the cart. Their contention that Plaintiff still cannot identify the driver is not a section 430.10(e) defect; Code of Civil Procedure section 474 expressly authorizes fictitious-name pleading.

2nd Cause of Action Negligent Entrustment:

The elements of negligent entrustment of a vehicle are as follows: (1) that the driver was negligent in operating the vehicle; (2) that the defendant owner owned the vehicle operated by the driver or had possession of that vehicle with the owner’s permission; (3) that the defendant owner knew, or should have known, the driver was incompetent or unfit to drive the vehicle; (4) that defendant owner permitted the driver to operate the vehicle regardless; and (5) that the driver’s incompetence or unfitness to drive was a substantial factor in causing harm to the plaintiff. (*McKenna v. Beesley* (2021) 67 Cal.App.5th 552, 565-66.)

The ownership, control, and permission allegations are adequate at the pleading stage. The dispositive defect is the knowledge and incompetence pleading. The Complaint alleges only that Defendants knew or should have known Jane Doe was incompetent or unfit, without identifying what made her so or any basis for actual or constructive notice. An owner is under no duty to keep a vehicle from a third person absent facts putting the owner on notice that the third person is incompetent to handle it. Negligent entrustment requires knowledge or reason to know of the driver’s incompetency, inexperience, or recklessness. A bare recitation that defendant knew or should have known of incompetence, without any predicate factual content identifying the basis for actual or constructive notice, does not satisfy the ultimate-facts requirement.

(*Owens v. Colfax* (1986) 184 Cal.App.3d 544, 547–48.) The causation allegation depends on the inadequately pleaded incompetence element and is correspondingly deficient.

3rd Cause of Action Negligent Hiring, Supervision and Retention of Unfit Employees:

Negligent hiring, retention, and supervision is a recognized direct-liability tort in California. (*C.A. v. William S. Hart Union High School District* (2012) 53 Cal.4th 861.) The elements of a cause of action for negligent hiring, retention, or supervision are: (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (*Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 836-837.) It requires that the employee was unfit or incompetent for the work assigned, that the employer knew or should have known hiring or retaining the employee created a particular risk or hazard, that the particular harm materialized, and that the employer's negligent hiring, retention, or supervision was a proximate cause of the injury. (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal. App. 4th 790.) Prior notice of a specific dangerous propensity, not generalized carelessness, is what makes later harm foreseeable. (*Conti v. Watchtower Bible & Tract Society of New York, Inc.* (2015) 235 Cal. App.4th 1214.)

The Complaint alleges only that Jane Doe was unfit or incompetent to perform the work for which she was hired, that Defendants knew or should have known of her unfitness, and that her unfitness created a particular risk. It does not describe what made her unfit, nor does it allege any pre-hire or post-hire facts from which actual or constructive notice could be inferred. The bare element-tracking allegations are conclusory rather than ultimate facts. Information-and-belief and superior-knowledge principles can reduce required detail where personnel information lies largely with Defendants, but they do not eliminate the requirement of some factual predicate for unfitness and notice. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531.)

Demurrer as to the 1st Cause of Action OVERRULED.

Demurrer as to the 2nd and 3rd Causes of Action SUSTAINED with leave to amend.

Plaintiff to file an amended complaint within 15 days.

Case Management Conference confirmed for 9.01.26.

8.

CASE #	CASE NAME	HEARING NAME
CVPS2603656	JAMES VS DESERT MOBILE HOMES LLC	HEARING RE: ELIGIBILITY OF WAIVER OF COURT FEES AND COSTS AS TO DAVID JAMES

Tentative Ruling: No tentative ruling. A hearing shall be conducted.